

21STCV46060 21STCV46060

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C08%2F27%2F2026

Source SHA-256: 584f9ee5f2bf083d62fea15d975c7bfccd586df36bd648c3a109c105daf2baf7

Case Number: 21STCV46060 Hearing Date: August 27, 2026 Dept: 11

Rahimi (21STCV46060)

Tentative Ruling Re:

Motion for Relief

Date: 8/27/26

Time: 11:00 am

Moving

Party: Shimon Rahimi, Victor

Ariel Herrera Aguilar, and Vicente Tuxpan (collectively "Plaintiffs")

Opposing

Party: Cambridge Farms Kosher,

Inc. ("Defendant")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiffs' motion for relief is moot.

BACKGROUND

This is a wage-and-hour action.

On May 22, 2026, the Court heard Defendant's motions to compel depositions. Plaintiffs filed late oppositions. The Court granted the motions to compel in part, ordering Plaintiffs Shimon Rahimi and Victor Ariel Herrera Aguilar to appear for depositions, and deferred the decision on Defendant's requests for monetary sanctions. (See 5/22/26 Minute Order, pp. 1-2.)

Here, Plaintiffs move for relief, asking the Court to read the late oppositions and to continue the May 22nd hearing. The motion is brought pursuant to Code of Civil Procedure section 473(b).

DISCUSSION

Arguments

Plaintiffs

Plaintiffs contend relief is warranted because the failure to file oppositions on time was caused by a calendaring error by Plaintiffs' counsel:

Plaintiff

Rahimi filed this action on December 17, 2021. Declaration of Hayley M. Davis ("Davis Decl.") at ¶ 4. Defendant filed its Motions on March 17, 2026 and set them for hearing for May 22, 2026. Davis Decl. at ¶¶ 5-6. Upon receipt of the Motions, counsel mistakenly calendared the opposition due date as if it were a reply brief. Id. at ¶ 8. Instead of calendaring the deadline for nine court days before the hearing (May 11, 2026), counsel erroneously calendared the deadline for five court days before the hearing (May 15, 2026). Id.

Plaintiff's

counsel discovered her error on May 13, 2026 while preparing Plaintiffs' Opposition papers. Id. at ¶ 9. Plaintiffs' Opposition papers are being filed concurrently with the instant motion for relief under Section 473(b). Id. at ¶ 10. Accordingly, Plaintiffs' Opposition papers will be filed a total of three days late.

* * *

The

California Supreme Court has “found it obvious that entering the wrong date in an attorney’s calendar [i]s sufficient to warrant relief under Code of Civil Procedure section 473.” *Comunidad en Accion*, 219 Cal.App.4th at 1135 (citing *Haviland v. Southern Cal. Edison Co.*, 172 Cal. 601, 605 (1916)). In general, the rule is that “[w]hile not every mistake of an attorney constitutes excusable neglect [citation], calendar errors by an attorney or a member of his staff are, under appropriate circumstances, excusable.” *Flores v. Board of Supervisors*, 13 Cal.App.3d 480, 483-484 (1970) (collecting cases). A single calendaring error is “a mistake ‘anyone could have made’” and warrants relief. *Comunidad en Accion*, 219 Cal.App.4th at 1135.

Ms. Davis’s

declaration satisfies the relief provision of section 473. Her mistaken calendaring of Plaintiff’s Opposition deadline as if it were a reply brief is a mistake “anyone could have made” and is thus excusable. *Id.* at 1132; see also Cal. Code Civ. Proc. § 1005(b) (“All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.”). Ms. Davis discovered her error on May 13, 2025 and filed the Opposition papers the following day. *Davis Decl.* ¶¶ 9-10. That Plaintiffs served their Opposition papers just three days late further supports the conclusion that Plaintiffs’ counsel has been diligent and the late filing was truly an inadvertent and unfortunate mistake. *Id.* at ¶ 10.

(Motion, pp. 4-5, 6.)

Defendant

Defendant claims the motion for relief is moot:

Plaintiffs’

Motion for Relief under Code of Civil Procedure Section 473 is moot. The Court has already considered Plaintiffs’ late-filed opposition papers, granted in

part Defendant's Motions compelling the deposition examinations of Plaintiffs Shimon Rahimi and Victor Ariel Herrera Aguilar on a date certain and continued Defendant's requests for attorneys' fees to the hearing set for August 27, 2026. Plaintiffs' Motion for Relief requested the Court to: (1) accept Plaintiffs untimely filed opposition brief to Defendant's Motions to Compel the Deposition Attendance of Plaintiffs on Dates Certain and Awards for Attorneys' Fees; and (2) to briefly continue the May 22, 2026 hearing. The Court has granted both of Plaintiffs' requests and effectively rendered their Motion for Relief under Code of Civil Procedure section 473 moot. Since Plaintiffs' Motion for Relief does not address Defendant's requests for attorneys' fees nothing remains on Plaintiffs' Motion for Relief for the Court to decide.

(Opposition, p. 2; see also *id.* at p. 3 [“Plaintiffs filed their Motion for Relief on May 14, 2026, The Court effectively granted Plaintiffs their requested relief on May 22, 2026, when it considered Plaintiffs' late opposition brief and ordered a continuation of the issue of Defendant's awards for attorneys' fees to August 27, 2026. The relief requested by Plaintiff has been effectively granted by the Court's May 22, 2026 order. The matter of awarding attorneys' fees' therefore remains pending on Defendant's Motions, not on Plaintiffs' Motion for Relief. Plaintiffs' Motion for Relief is effectively moot.”].)

Reply

Plaintiffs state:

* During the May 22nd hearing, the Court did not consider the late oppositions. (See Reply, pp. 3-4.)

* Defendant's requests for monetary sanctions are “outrageous and unsupported[.]” (*Id.* at p. 4.)

Analysis

Section

473(b) contains a mandatory provision and a discretionary provision. “Mandatory relief may be sought only from defaults, default judgments and dismissals[.]” (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2025) ¶ 5:290.) “Discretionary relief applies ‘in connection

with any order' and may be granted for" "mistake, inadvertence, surprise or excusable neglect[.]" (Ibid.)

Plaintiffs'

counsel submitted a declaration of fault.

(See Davis Decl., ¶¶ 3-9.)

In some situations, an attorney's declaration of fault renders relief

mandatory. (See, e.g., Weil &

Brown, *supra*, at ¶¶ 5:292, 5:294, 11:114 [requiring mandatory relief

from defaults, default judgments, and equivalent dismissals when attorneys file

declarations of fault]; see also Cal. Code Civ. Proc. § 473, subd. (b)

[similar].)

Plaintiffs'

situation is not one of those situations.

Being ordered to sit for depositions after failing to file timely

oppositions does not qualify as a default, default judgment, or dismissal akin

to a default.

The

question is whether discretionary relief should be granted. The answer is no. Plaintiffs' moving brief "requests that the

Court (1) accept Plaintiffs' late filing of their Opposition papers and (2)

briefly continue, by at least three court days, the May 22, 2026 hearing on

Defendant's Motions to allow Defendant to file timely replies." (Motion, p. 6; see also *id.* at p. 4 ["Plaintiffs

request that the Court grant relief from the late filing of the Oppositions,

continue the May 22, 2026 hearing date for Defendant's Motions, and reset the

briefing schedule to enable Defendant to file timely replies on the merits."].) As Defendant points out, the Court continued the

May 22nd hearing and granted a continuance as to Defendant's requests

for monetary sanctions. The oppositions and

replies have been read. In essence,

Plaintiffs have already received the relief that they seek, so discretionary

relief is unneeded, and the motion for relief is moot.^[1]

[1] The sanctions requests will be

addressed at the August 27th hearing.